

stituent part of the ownership as much as the other. Thus, if a testator by will duly signed and attested give lands to A. and his heirs "*upon trust*," but without specifying the particular trust intended, and then by a paper, not duly signed and attested as a will or codicil, declare a trust in favour of B., the beneficial interest under the will is a part of the original ownership and cannot be passed by the informal paper, but will descend to the heir-at-law, or if the will be made since 1837, and contain a residuary devise, will pass to the residuary devisee. So if a legacy be bequeathed by a will, duly executed, to A. "*upon trust*," and the testator, by parol, express an intention that it shall be held by A. upon trust for B., such a direction is in fact a testamentary disposition of the equitable interest in the chattel, and therefore void by the statute, which requires a will duly executed. If it be said that such expression of intention, though void as a devise or bequest, may yet be good as a declaration of trust, and therefore that where the *legal estate* of a freehold is well devised, a *trust* may be engrafted upon it by a simple note in writing; and where a chattel personal is well bequeathed, a trust of it, as excepted from the seventh section of the Statute of Frauds, may be raised by a mere parol declaration; the answer is, that a wide distinction exists between testamentary dispositions and declarations of trust. The former are ambulatory until the death of the testator, but the latter take effect, if at all, at the time of the execution. "A deed," observed Mr. Justice Buller, in a similar case, "must take place upon its execution, or not at all; it is not necessary for a deed to convey an immediate interest in possession, but it must take place as passing the interest to be conveyed at the execution; but a will is quite the reverse, and can only operate after death" (a). [It seems therefore on principle], that if the intended disposition be of a testamentary character, and not to take effect in the testator's lifetime, but to be ambulatory until his death, such disposition is inoperative unless it be declared in writing in conformity with the statutory enactments regulating devises and bequests (b).

(a) *Habergham v. Vincent*, 2 Ves. jun. 230.

(b) [See, however, *Re Fleetwood*, 15 Ch. D. 594; *Re Boyes*, 20 Ch. D.